

Tentative Rulings for September 16, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVME2505415	CHANNEL PARTNERS CAPITAL LLC VS WNK FOODS	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Grant Plaintiff’s Motion for Summary Judgment. Plaintiff to submit a proposed judgment order within 10 days. An OSC is set on September 30, 2026 re: failure to submit the Proposed judgment order.

This is an action for breach of a written equipment finance agreement and the personal guaranty securing that agreement. On August 10, 2022, Plaintiff Channel Partners Capital LLC (“Plaintiff”) and Defendant WNK Foods, dba Rally’s (“WNK”) executed a written Master Equipment Finance Agreement (“Agreement”) under which Plaintiff agreed to loan WNK \$153,978.46 for the purchase of restaurant equipment, and WNK agreed to repay the loan in 72 monthly installments of \$2,770.33, for a total repayment amount of \$199,463.76. (Pl.’s Separate Statement of Undisputed Material Facts [“UMF”] ¶¶ 1–2; Defs.’ Response ¶¶ 1–2.)

Concurrent with the Agreement, Defendant Wahid Kamal Istifanos Karas aka Wahid Karas (“Karas”) executed a personal Guaranty (“Guaranty”) under which he agreed to be personally and unconditionally liable for all amounts owed by WNK under the Agreement. (UMF ¶ 3; Defs.’ Response ¶ 3.)

WNK made 26 monthly payments totaling \$72,028.58, but failed to make the monthly payment due October 25, 2024, or any payment thereafter. (UMF ¶ 6; Defs.’ Response ¶ 6.) Paragraph 12 of the Agreement provides that upon default, Plaintiff may accelerate the unpaid balance, including future payments to the end of term, discounted to present value at 4%. (Defs.’ Response ¶ 7; Thooft Decl. ¶ 5, Ex. 1 at p. 2.) Plaintiff seeks judgment for \$121,705.33 against WNK and Karas (collectively, “Defendants”), which is the sum pleaded in the Complaint. (UMF ¶¶ 8–9; Thooft Decl. ¶ 10; Compl. Prayer ¶ 1.)

On May 14, 2025, Plaintiff filed the Complaint against Defendants, asserting a single cause of action for breach of contract. Plaintiff seeks damages in the amount of \$121,705.33, plus any interest and reasonable attorney’s fees pursuant to the Agreement.

Objection No. 1 – Thooft Decl. ¶ 7 (sale-and-leaseback/\$64,500 disbursement to WNK). Defendants object based on lack of foundation and lack of personal knowledge. They argue that Thooft characterizes the \$64,500 December 29, 2021 payment as part of a sale-and-leaseback between WNK and NWS without identifying any lease, bill of sale, or sale-and-leaseback agreement, and without a stated personal source of knowledge for the transaction between WNK and NWS. Plaintiff responds that Thooft is competent to testify to facts reflected in the loan file she reviewed, that the objection goes to weight rather than admissibility, and that the objection is immaterial because Exhibit 3 (disbursement record) and Exhibit 1 (supplier invoices) independently establish Plaintiff’s performance.

- **OVERRULE.** The Court’s performance analysis does not rely on the sale-and-leaseback characterization in the Thooft Declaration. Instead, it rests on the invoice-to-disbursement reconciliation (Ex. 1; Ex. 3), which is independently admissible. The characterization is in any event immaterial to the performance element.

Objection No. 2 — Thoof Decl. ¶ 10 (damages calculation). Defendants object that Thoof states a \$127,435.18 principal balance, a 4% discount to \$122,337.77, and a requested \$121,705.33 without identifying any loan ledger, amortization schedule, or present-value worksheet showing how paragraph 12 produces those figures. Plaintiff responds that the foundational showing for its business records is unchallenged, that no rule of evidence requires a declarant to show arithmetic, and that Defendants have admitted every numerical input (72 payments of \$2,770.33; 26 payments made totaling \$72,028.58; paragraph 12's 4% discount on acceleration).

- **OVERRULE.** The objection is directed to weight and sufficiency of the damages showing, not to the admissibility of the Thoof Declaration. The inputs are drawn from the face of the Agreement and Defendants' admissions, and the damages figure is a straightforward mathematical consequence of those inputs.

Existence of the Contract: The undisputed evidence shows that on August 10, 2022, Plaintiff and WNK executed the Agreement, reflecting a financed amount of \$153,978.46 to be repaid over 72 monthly installments of \$2,770.33, and that Karas concurrently executed a personal Guaranty covering all amounts owed by WNK under the Agreement. (UMF ¶¶ 1–3; Defs.' Response ¶¶ 1–3.) Defendants admit the execution and terms of both the Agreement and the Guaranty. (UMF ¶¶ 1–3.)

Plaintiff's Performance: Plaintiff contends it performed by disbursing the full \$153,978.46 in three payments: \$66,560.47 to NWS, \$22,917.99 to ReSource, and \$64,500 directly to WNK. (UMF ¶¶ 4–5.) Defendants dispute performance on the ground that \$64,500 was disbursed directly to WNK rather than to an equipment supplier, and that Thoof's characterization of that payment as funding lease obligations under a sale-and-leaseback with NWS is unsupported by any lease, bill of sale, or sale-and-leaseback agreement in the record. (Defs.' Response ¶¶ 4–5.)

In reply, Plaintiff provides an arithmetic reconciliation drawn from the supplier invoices themselves. The NWS invoice totals \$131,060.47, reflects a December 29, 2021 credit of \$64,500, and shows an actual outstanding balance of \$66,560.47 (Thoof Decl. ¶ 5, Ex. 1 at pp. 25–26), matching Plaintiff's disbursement to NWS (Thoof Decl. ¶ 7, Ex. 3). The ReSource invoice totals \$22,917.99 (Thoof Decl. ¶ 5, Ex. 1 at p. 4), matching Plaintiff's disbursement to ReSource (Thoof Decl. ¶ 7, Ex. 3). The sum of the two equipment packages (\$131,060.47 + \$22,917.99) equals \$153,978.46, the exact amount financed. (Thoof Decl. ¶ 7, Ex. 3.) Because \$64,500 of the NWS package had already been paid before the financing closed, only \$66,560.47 remained owing to NWS (Thoof Decl. ¶ 7, Ex. 3), and disbursing the full \$131,060.47 to NWS would have overpaid that supplier by \$64,500. (Pl.'s Reply 6:10–12.) That explanation does not depend on the sale-and-leaseback characterization. It depends on the invoices and the arithmetic they reflect.

Defendants have submitted no declaration or documentary evidence controverting Plaintiff's account. Defendants do not deny that WNK received the \$64,500, do not dispute the NWS invoice's \$64,500 December 2021 credit or its \$66,560.47 outstanding balance, and do not assert that the total equipment cost was anything other than \$153,978.46. (Defs.' Response ¶¶ 1–5.) The absence of a sale-and-leaseback agreement bears on the characterization of the prior payment but does not negate the fact, reflected on the face of the NWS invoice, that the \$64,500 credit reduced what NWS was owed at the time of the August 2022 financing. Plaintiff's contractual obligation was to advance \$153,978.46 (Thoof Decl. ¶ 5), and the undisputed

evidence shows it advanced exactly that amount in proportions that reconcile precisely to the supplier invoices (Thooft Decl. ¶ 7, Ex. 3).

Defendants' Breach: Defendants admit that WNK made 26 monthly payments totaling \$72,028.58 and failed to make the payment due October 25, 2024 or any payment thereafter. (Defs.' Response ¶ 6.) Defendants likewise admit that paragraph 12 of the Agreement contains an acceleration remedy triggered by default. (*Id.* at ¶ 7.)

Resulting Damages: Paragraph 12 of the Agreement fixes the measure of damages upon default: the unpaid balance of the Agreement, including future payments to the end of term, discounted to present value at 4%. (Thooft Decl. ¶ 5, Ex. 1 at p. 2.) The inputs are largely admitted:

- Total scheduled payments: $72 \times \$2,770.33 = \$199,463.76$. (Defs.' Response ¶ 2.)
- Payments made: 26 payments totaling \$72,028.58. (Defs.' Response ¶ 6.)
- Unpaid scheduled payments: 46, valued at $46 \times \$2,770.33 = \$127,435.18$. (Defs.' Response ¶¶ 2, 6.)
- Contractual 4% discount on acceleration. (Defs.' Response ¶ 7.)

Thooft's declaration states that applying the 4% discount reduces \$127,435.18 to \$122,337.77, and that Plaintiff seeks \$121,705.33, the sum pleaded in the Complaint. (Thooft Decl. ¶ 10.) The arithmetic producing \$122,337.77 treats the 4% as a flat reduction: $\$127,435.18 \times 0.96 = \$122,337.77$. (*See* Pl.'s Reply 2:7–15.)

Defendants raise two objections to the damages calculation. First, they argue paragraph 12's language ("discounted to present value at 4%") requires a time-value present-value calculation and that Thooft's declaration supplies no amortization schedule, payment ledger, or present-value computation showing how the contractual formula produces the requested figure. (Defs.' Opp. 2:1–9, 4:10–16; Defs.' Response ¶¶ 4–9.) Second, they argue the \$632.44 gap between \$122,337.77 and \$121,705.33 is unexplained and not identified in Thooft's declaration. (Defs.' Opp. 5:7–6:21; Defs.' Response ¶¶ 8–9.) Defendants cite *CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239, and *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 242–243, for the proposition that a moving plaintiff must affirmatively prove both the fact and the amount of damages.

Plaintiff has made a *prima facie* showing of the amount. Paragraph 12 does not specify an annual rate, a compounding interval, or a timing convention for the 4% discount; where the same paragraph intends an annualized rate, it uses explicit language ("18% per year"). (Thooft Decl. ¶ 5, Ex. 1 at p. 2.) Plaintiff's flat 4% application is at least a facially plausible reading of paragraph 12, and Defendants have offered no competing calculation, no expert declaration on present-value methodology, and no evidence of what the correct figure would be under a time-value approach. (Defs.' Response ¶¶ 4–9.) As to the \$632.44 gap, the difference operates in Defendants' favor as Plaintiff seeks less than the contract, on its face, would allow. (Thooft Decl. ¶ 10.) A defendant cannot manufacture a triable issue by pointing to a discrepancy that would only reduce the amount owed.

Plaintiff has carried its initial burden as to damages, and Defendants, having produced no affirmative controverting evidence of any kind, have not raised a triable issue of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVME2512738	COLLINS VS OBEIDIN	MOTION TO COMPEL ARBITRATION, DEMURRERS AND MOTION TO STRIKE THE 1 ST AMENDED COMPLAINT

Tentative Ruling: Sustain Christopher Lim Cho and Wendy Yu Cho’s demurrer to the second and third causes of action, without leave to amend—unless the Plaintiff makes a proper request for a hearing and can establish how Plaintiff can overcome the deficiencies stated below. **The motion to strike is moot.**

The Board of Trustees’ demurrer is moot. On 7/8/26, the Court continued the demurrer and ordered the parties to meet and confer. On 8/21/26, declarations were filed by Plaintiff’s attorney and the Board of Trustees of the California State University’s counsel indicating that the parties had agreed that Plaintiff will file an amended pleading. Therefore, the Court grants Plaintiff 30 days’ leave to amend.

Deny the Pi Kappa Alpha International Fraternity, Inc. and Oak Service Corporation’s motion to compel arbitration.

Advance and grant Plaintiff’s motion for leave to amend, which is set to be heard on October 30, 2025, with 30 days’ leave to amend. Vacate the hearing on October 30, 2026. Plaintiff shall have 30 days to file a Second Amended Complaint that complies with the Court’s rulings.

Continue the CMC to January 20, 2027.

Demurrers: The second cause of action alleges that Cho Family Trustees’ negligence includes negligently managing/controlling/supervising the Long Beach property; permitting the Long Beach property to be used as a fraternity house where hazing occurred; failing to monitor or address large-group activities that occurred on the property; failing to implement reasonable restrictions on the use of the premises; and failing to warn or protect foreseeable victims, including Plaintiff, from dangers arising from the party, such as the planning and coordination of the retreat. (FAC, ¶¶ 54 and 55.) There are no allegations in the FAC that Plaintiff sustained any injuries while at the property owned by the Trust. While he alleges that hazing occurred on the property, there are no allegations in the FAC that he was subjected to hazing on the property or sustained injuries on the property.

The third cause of action alleges that the claim against Cho Family Trustees is based on their “failure to supervise, restrict, or control the property’s hazardous use, were a substantial factor in permitting or facilitating the hazing and unsafe travel conditions that led to the April 13, 2025 crash.” (FAC, ¶ 64.) This cause of action is also not based on injuries sustained while on the Trust property or hazing that occurred on the Trust property to Plaintiff.

Both causes of action are based on the fact that fraternity members lived on the property and planned the retreat from the property. Plaintiff appears to allege that, as the landlord to some fraternity members, Family Trustees owed a duty of care to third parties for events the fraternity members planned while living at the property. Family Trustees argue that these causes of action fail because they do not owe such a duty of care to Plaintiff, and Plaintiff does not cite to any authority that imposes such a duty on a landlord.

The *Rowland* factors that courts use to determine if a duty of care exists between a plaintiff and defendant are: (1) foreseeability of harm to plaintiff, (2) degree of certainty that the plaintiff suffered injury, (3) how close the connection between the defendant's conduct and the injury suffered, (4) the moral blame attached to the conduct by defendant, (5) the policy of preventing future harm, (6) the burden to the defendant and consequences of imposing a duty to exercise care, (7) and the availability, cost, and prevalence of insurance for the risk involved. (*Castaneda v. Olsher* (2007) 41 Cal.4th 1205, 1213.) "Foreseeability and the extent of the burden to the defendant are ordinarily the crucial considerations, but in a given case one or more of the other *Rowland* factors may be determinative of the duty analysis." (*Ibid.*)

The *Rowland* factors do not support liability here.

Generally, there is no duty to act to protect others from third-party conduct. (*Williams v. Fremont Corners, Inc.* (2019) 37 Cal.App.5th 654, 663.) A duty to protect requires a two-step analysis. "First, the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in *Rowland* to determine whether relevant policy considerations counsel limiting that duty." (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 209.) There are no allegations that Plaintiff and Family Trustees had any relationship, let alone a special relationship. Plaintiff points to no authority that a landlord is required to notify third parties of dangerous conditions or events that may occur off their property. A landlord is not required to warn their tenants or the general public of dangers off their property. (*Wylie v. Gresch* (1987) 191 Cal.App.3d 412, 424.)

Plaintiff relies on *Brown v. USA Taekwondo*, *supra* 11 Cal.5th 204. *Brown* involved young athletes whose coaches sexually abused them. (*Id.* at 210.) Plaintiff points to language in *Brown* that provides "a special relationship between the defendant and the dangerous third party is one that 'entails an ability to control [the third party's] conduct.'" (*Id.* at 216.) However, Plaintiff points to no authority that landlords can control what tenants do off of their landlord's property or that landlords can control what plans tenants make while living on the premises.

Arbitration: Plaintiff contends that CCP § 1281.2(c) applies, so the motion to compel arbitration should be denied. Moving Pi Kappa Alpha and Oak Defendants concede that the first two requirements under CCP § 1281.2(c) have been met. However, they argue that there is no common issue of law or fact between the defendants (the third element)—arguing that the basis of liability is distinct among the defendants.

CCP § 1281.2(c) is applicable.

Liability against the Board of Trustees of the California State University ("CSU") is based in part on their alleged failure to prevent hazing-related conduct and unsafe initiation and travel practices by PKA. (FAC, ¶ 52.) Liability asserted against Moving Defendants and PKA, is based on their failure to adequately supervise and regulate fraternity members, events, and travel, and failure to enforce anti-hazing policies. (FAC, ¶¶ 51 and 62.) Liability against the Cho Family Trust is based on the failure to warn of the hazing activities that occurred in Riverside. (FAC, ¶ 54.) If there were no hazing activities or if the hazing activities did not cause or contribute to the accident, the claims against the defendants would all fall. As a result, the claims against the defendants share a common question of fact. If the claims against Moving Defendants went to

arbitration, one venue could find no hazing or that the hazing did not cause or contribute to the accident.

In contrast, another venue could find that hazing occurred or that it caused or contributed to the accident. Accordingly, the requirements for CCP § 1281.2(c) have been met. Therefore, the Court denies the motion to compel arbitration.

3.

CASE #	CASE NAME	HEARING NAME
CVME2606933	ANDERSON VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Deny Defendant's requests for judicial notice in full. Deny the motion to compel arbitration. Defendant to file an Answer or responsive pleading within 30 days. Defendant has failed to meet its burden showing the existence of a valid and enforceable arbitration agreement.

4.

CASE #	CASE NAME	HEARING NAME
CVME2600219	JAMES VS COUNTY OF RIVERSIDE	PETITION FOR ORDER RELIEVING PETITIONER FROM PROVISIONS OF GOVERNMENT CODE SECTION 945.4

Tentative Ruling: Continue to November 17, 2026, for proper service of petition on *the California Attorney General's Office*, pursuant to Government Code section 946.6.